Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
HON. Scott A. Steiner

Date: June 17, 2026

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: Official Pro Tempore Reporters | Superior Court of California | County of Orange (occourts.org). For additional information regarding court reporter availability, please visit the court's website at Language Access Interpreter Request | Superior Court of California | County of Orange (occourts.org).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 04:30 PM the day prior to the hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case. **The court will not entertain a request to continue a hearing, or any document filed after the court has posted a tentative ruling**.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5618. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (Lewis v. Fletcher Jones Motor Cars, Inc. (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department N18 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department N18 at the North Justice Center, located at 1275 N. Berkeley Ave., Fullerton, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at [Civil Remote Hearings | Superior Court of California | County of Orange (occourts.org)] before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at [Civil Remote Hearings | Superior Court of California | County of Orange (occourts.org)] The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at [Civil Remote Hearings | Superior Court of California | County of Orange (occourts.org)] Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5618 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name	Tentative
1.	2025-1514110 Consumers Pipe & Supply Co. vs. Pen Manufacturing, LLC	The motion by James Ling of Ling Law Group, APC, to be relieved as counsel of record for defendant Pen Manufacturing, LLC, is granted. Upon the signing of the order, counsel shall serve the signed order on the client and all parties that have appeared. James Ling of Ling Law Group, APC will be relieved as counsel of record for defendant Pen Manufacturing, LLC, effective upon the filing of the proof of service of the signed order upon the client and all parties. Ling Law Group, APC is ordered to give notice of the ruling.
2.	2024-1394324 Meador vs. Bricks and Mortar Entertainment LLC	Plaintiff Jenna Meador's Motion for Order Permitting Filing of Corrected Memorandum of Costs Summary and Worksheet is granted. Plaintiff moves, under CCP section 473, for an order permitting the filing of the corrected memorandum of costs filed on 3/10/26. (See ROA 312, 314.) Plaintiff explains that the "total costs" claimed remains $14,106.07 (as claimed in the original memorandum of costs summary (ROA 266)), but the original memorandum of costs

		summary and worksheet "contained an error in omitting deposition costs at line 4 due to computer error." (ROA 310 [Not. of Errata at p. 1].) CCP section 473, subdivision (b), provides, in relevant part, that the court may, "upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, *or other proceeding* taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b), emphasis added.) The application "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (*Id.*) "The law favors judgments based on the merits, not procedural missteps"; thus, "doubts must be resolved in favor of relief, with an order denying relief scrutinized more carefully that an order granting it." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.) The Court finds it is in the interests of justice to grant relief, here, because: Plaintiff's counsel has provided a reasonable explanation for the circumstances that caused the error; the motion was made within a reasonable time; the total costs claimed have not changed (and the error appears to be largely clerical); and, Defendant will not be unduly prejudiced because it will have a full and fair opportunity to challenge the corrected memorandum. Plaintiff shall give notice of the ruling.
3.	2025-1488244 Oozoonian vs. Innovative Service Technology Management Services, Inc.	Plaintiff Armen Oozoonian's motion to set aside the dismissal entered on February 19, 2026, is granted. Code of Civil Procedure section 473, subdivision (b) includes a mandatory relief or "attorney fault" provision, which requires the court to vacate a dismissal or order, if a motion or application for relief from the dismissal or order (1) is filed "no more than six months after entry of judgment," (2) is "in proper form," and (3) is accompanied by an attorney's affidavit of fault, unless the court finds that the default judgment or dismissal was not caused by the attorney's mistake, inadvertence, surprise, or neglect. (*Dollase v. Wanu Water, Inc.* (2023) 93 Cal.App.5th 1315, 1322-1323.) Additionally, the policy of the law is to have every litigated case tried on its merits and any doubts in applying section 473 must be resolved in favor of the party seeking relief from dismissal. (*Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 696.)

		Plaintiff timely filed the instant motion on February 26, 2026, one week after the February 19, 2026, Dismissal (ROA 19) was entered. (*Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1147 [a motion to set aside default or dismissal based on attorney fault "is timely if filed within six months of the entry of the default judgment or dismissal"].) Plaintiff's counsel, Shaunt Oozoonian, declares that he missed the Case Management Conference and the hearing for the Order to Show Cause re: Dismissal (for Failure to Appear at the Case Management Conference) due to calendaring errors and neglect for failing to check the Register of Actions. (Shaunt Oozoonian Decl. ¶¶ 13-19.) Plaintiff's counsel's mistake, inadvertence, surprise and/or neglect led to the dismissal of the instant action. There is no contention or evidence that Plaintiff's failure to abide by the Court's orders and rules was not Attorney Oozoonian's fault and no prejudice has been argued or identified. The dismissal ordered on February 19, 2026, is set aside.
4.	2024-1420864 Goldsworthy vs. FCA US, LLC	Plaintiff Gaelyn Goldsworthy's motion for attorneys' fees is granted. Plaintiff is awarded $162,491.08 in reasonable attorneys' fees, costs, and expenses, against Defendant FCA US, LLC. <u>Merits</u> Civil Code section 1794, subdivision (d) provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Defendant does not dispute that Plaintiff is the prevailing party under the Song-Beverly Act, as reflected in their settlement agreement. Plaintiff's right to seek an award of attorneys' fees and costs is a term of Defendant's Offer to Compromise, which was accepted. (See ROA 166.) To recover attorney's fees, a prevailing party bears the burden of demonstrating that the fees were: (1) allowable; (2) reasonably necessary to the conduct of the litigation; and (3) reasonable in amount. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998.) The lodestar method is applicable to calculating attorney's fees under the Song-Beverly Consumer Warranty Act. (*Id.* at p. 997.) An experienced trial judge is the best judge of the value of professional services rendered in his or her court. (*Ibid.*) The trial court's analysis "begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and

		reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321, citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131–1132.) "The reasonable hourly rate is that prevailing in the community for similar work." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095 [citation omitted].) "In setting a reasonable rate, the court may consider various factors beyond the applicable legal community, such as the attorney's skill and experience, the nature of the work performed, the relevant area of expertise, and the attorney's customary billing rates. (*Hoglund v. Sierra Nevada Memorial-Miners Hospital* (2024) 102 Cal.App.5th 56, 82, citing *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632–633.) To determine reasonable attorney's fees, the court should consider the nature of the litigation, its difficulty, the amount involved, the skill required and employed in handling the matter, the attention given, the success of the attorney's efforts, the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (*Church of Scientology v. Wollersheim* (1996) 42 Cal.App.4th 628, 659.) As to the reasonableness of the hours, "trial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation." (*Ketchum v. Moses*, *supra*, 24 Cal.4th at 1132.) "In determining a fee's reasonableness, the court may also consider whether the motion itself is reasonable, both in terms of (1) the amount of fees requested and (2) the credibility of the supporting evidence." (*Guillory v. Hill* (2019) 36 Cal.App.5th 802, 811.) The court may make a downward adjustment if the billing entries are vague, "blockbilled," or unnecessary. (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 441.) Here, the Court determines that the hourly rates of Plaintiff's attorneys, which range from $200 to $550 for associates, and $750 for a partner, are reasonable. The Court declines to reduce the rate for all associates to $200, per Plaintiff's request, as such a reduction is not warranted. However, with respect to the reasonableness of the hours, the Court agrees with Defendant, in part, that the time entries reflect padding, duplication, inefficiency, and other inappropriate billing. The time spent on the fee motion was particularly questionable. Having reviewed the entries attached as Exhibit L to the Jason Brower Declaration, the Court finds the fees should be reduced by

		$157,390; and, that Plaintiff reasonably incurred $162,491.08 in attorneys' fees. The Court declines to award a multiplier. The party seeking a fee enhancement bears the burden of showing why an enhancement is appropriate. (*Ketchum v. Moses, supra*, 24 Cal.4th at 1138.) The Court is not persuaded that Plaintiff's requested enhancement is warranted. In sum, Court grants the motion and awards $158,165, in reasonable attorneys' fees, and $4,326.08, in costs and expenses, for a total award of $162,491.08. Plaintiff shall give notice of the ruling.
6.	2025-1517503 Debdeb vs. Fair Trade Real Estate, Inc.	Defendants Fair Trade Real Estate, Inc.'s, Donald "Dek" Bake's, David Durant's, and Dennis Durant II's special motion to strike Plaintiffs' First Amended Complaint ("FAC") pursuant to Code Civ. Proc., § 425.16 is granted. Defendants' evidentiary objections to the declaration of Ehab Debdeb are sustained as to Nos. 1, 4, 8-29, 33-4, 37-39, 41-43, 46-41, 53, and 54, and overruled as to Nos. 2, 3, 5, 6, 7, 30, 31, 32, 35, 36, 40, 44, 45, and 52. Defendants' objections to the declaration of Nathan Hurd are sustained as to Nos. 2, 4, and 6-10 and overruled as to Nos. 1, 3, and 5. The Court additionally sustains Defendants' objection to the declaration of Bryan Lazarski filed on 6/9/26. This was due with Plaintiffs' opposition documents to be filed on 6/4/26. Counsel's only excuse for the late declaration is that he was in arbitration when it was due. Plaintiffs were aware of the motion since 2/24/26 when it was filed and served. The Court does not find counsel's conduct to be excusable, given the nature of litigation and likelihood that attorneys are often handling multiple different matters throughout the year at the same time. Anti-SLAPP motions are evaluated through a two-step process. Initially, the moving defendant bears the burden of establishing that the challenged allegations or claims "aris[e] from" protected activity in which the defendant has engaged. (Code Civ. Proc., § 426.15(e) [defining protected activity]; *Simpson Strong-Tie Co., Inc. v. Gore* (2010) 49 Cal.4th 12, 21; *Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 66–67.) If the defendant carries its burden, the plaintiff must then demonstrate its claims have at least

		"minimal merit." *(Navellier v. Sletten* (2002) 29 Cal.4th 82, 89; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 384.) In this case, Plaintiffs allege that Decedent Amir Debdeb ("Amir") began working for Defendant Fair Trade Real Estate on 10/27/23. He worked with Saad Kahn who in August of 2024 founded a separate company, Clean Slate CA, Inc. Kahn offered Amir a position at Clean Slate; Amir began his employment there on 8/6/24. Plaintiffs' relevant allegations include: On 8/6/24, Amir received a cease and desist letter from Fair Trade demanding he return all Fair Trade materials, client files, etc. (FAC, ¶ 14); Amir agreed to do this at Fair Trade's Irvine office (FAC, ¶ 15); while there, Defendant David Durant told him "Dek and Matt are really pissed" and "Dek especially is out for blood…," that Amir would be sued "for damages in the millions," would be "personally liable for exorbitant legal fees," and to "give Saad up," in exchange for "legal immunity." (FAC, ¶¶ 23-25, 27, 31.) In addition, Plaintiffs state that Defendants had already filed litigation on 8/20/24, but had not yet served Amir "to intimidate him into falsely implicating Saad." (FAC, ¶ 28.) Tragically, two days after being served with the Complaint on 9/5/24, Amir committed suicide on 9/7/24. (FAC, ¶¶ 40-41.) Plaintiffs state claims for (1) intentional infliction of emotional distress, (2) negligent misrepresentation and negligent infliction of emotional distress, (3) negligent hiring, retention and supervision, (4) intentional/negligent interference with prospective economic advantage, (5) wrongful use of civil proceedings/abuse of process/malicious prosecution, (6) wrongful death, and (7) survival. Here, the conduct complained of falls under Code Civ. Proc. § 425.16(e)(2): "statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law." The meeting was the result of the cease and desist letter from Fair Trade's attorneys that noted the potential of litigation. (Blake Decl., Ex. A.) As summarized above, during the meeting, Amir was told he would be sued, and urged to bargain with Fair Trade's lawyers and "implicate Saad Kahn in exchange for 'legal immunity'." (FAC, ¶¶ 14-16, 24-25.) This conduct arises in furtherance of the right to petition. (See *Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1263 "communications in connection with anticipated litigation are considered to be under consideration or review by a ... judicial body." [internal citations omitted].)

		There is an exception to § 425.16(e), set forth in *Flatley v. Mauro* (2006) 39 Cal.4th 299. Here, the Court held "that where a defendant brings a motion to strike under section 425.16 based on a claim that the plaintiff's action arises from activity by the defendant in furtherance of the defendant's exercise of protected speech or petition rights, but either the defendant concedes, or the evidence conclusively establishes, that the assertedly protected speech or petition activity was illegal as a matter of law, the defendant is precluded from using the anti-SLAPP statute to strike the plaintiff's action." (*Id*. at 320.) In *Flatley*, Plaintiff alleged that Defendant Mauro sent him a demand letter threatening to publicly accuse him of rape and other legal violations and publicly investigate his personal assets to determine punitive damages and other potential crimes unless he paid a settlement of seven figures. (Id. at 329.) Citing to Pen. Code § 519, the Court defined extortion as "the obtaining of property from another, with his consent ... induced by a wrongful use of force or fear...." (*Id*. at 326.) After carefully considering Plaintiffs' claims, the Court does not find that Defendants' conduct amounts to extortion. It is not clear from the allegations that Defendants were asking Amir to lie/testify falsely against Saad, even though this seems to have been Amir's impression. (See gen. *Osborne v. Pleasanton Automotive Co., LP* (2024) 106 Cal.App.5th 361, 381 (court notes that the complainant's "conclusory assertion that [cross-defendant's] statements to him amounted to "blackmail" and "extortion" are nothing but characterizations unsupported by evidence or legal authority," thus he fails to show said "statements amounted to extortion"); *Flickinger v. Finwall* (2022) 85 Cal.App.5th 822, 837 ("[a]lthough plaintiff says he understood it as a threat to go accuse him of a crime, his subjective and self-serving interpretation cannot establish extortion as a matter of law").) Accordingly, the Court finds that Defendants meet their burden with respect to step one, in showing protected speech. Plaintiffs fail to meet their burden as to step two. This "probability of prevailing" is tested by the same standard governing a motion for summary judgment, nonsuit or directed verdict. I.e., in opposing an anti-SLAPP motion, it is plaintiff's burden to make a prima facie showing of *facts* that would support a judgment in plaintiff's favor. (See *Taus v. Loftus* (2007) 40 Cal.4th 683, 714 (a "summary-judgment-like procedure").)

		In determining whether the plaintiff has shown a reasonable probability he will prevail on the merits at trial, the court must consider both the legal sufficiency of and evidentiary support for the pleaded claims, as well as defenses to them. (*McGarry v. University of San Diego* (2007) 154 Cal. App. 4th 97, 108.) The court considers, but does not weigh, the evidence. (*Id.)* The test is the same as that governing a motion for summary judgment, nonsuit, or directed verdict – that is, whether the plaintiff's evidence, if credited, would be sufficient to meet the burden of proof. (*Taus v. Loftus* (2007) 40 Cal. 4th 683, 714.) Plaintiffs' evidence to support their claims consists almost exclusively of Ehab Debdeb's declaration and Amir's email summarizing the meeting with Defendants. (See Opposition at pgs. 11-15.) This evidence is largely inadmissible. Amir's statements are hearsay and do not fall under any applicable hearsay exceptions. In addition, Plaintiffs' claims (except for the malicious prosecution claim) are precluded by the litigation privilege in Civil Code § 47(b). Civ. Code, § 47(b) provides that "privileged publication or broadcast is one made…[i]n any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2 (commencing with Section 1084) of Title 1 of Part 3 of the Code of Civil Procedure…" (See also *Bonni v. St. Joseph Health System* (2022) 83 Cal.App.5th 288, 300–301 ("litigation privilege is not limited to statements made during the proceedings, but may extend to steps taken prior thereto, or afterwards….application of the privilege does not depend on the publisher's motives, morals, ethics or intent." [internal citations omitted].) Here, the conduct complained of relates to Defendants' anticipated/pending litigation, and thus the claims based thereon are barred by the litigation privilege. While the Court recognizes that the litigation privilege does not extend to malicious prosecution claims, as previously noted, Plaintiffs fail to submit evidence to support the elements of malicious prosecution. (See *Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1242 ("[t]he policy of encouraging free access to the courts that underlies the absolute privilege applicable in defamation actions is outweighed by the policy of affording redress for individual wrongs when the requirements of favorable termination, lack of probable cause, and

		malice are satisfied.”).) Accordingly, Defendants’ anti-SLAPP motion is granted. Defendants shall give notice.
7.	2026-1540706 Inszone Insurance Services LLC vs. Torres	The motion by Plaintiff InsZone Insurance Services LLC (“Plaintiff”) for a preliminary injunction against Defendant Julio C. Torres (“Defendant”) and his agents, principals, partners, attorneys, servants, employees, representatives, and all those persons and/or entities acting under, in concert, with or for him is denied. As an initial matter, the Court notes Plaintiff electronically served the notice of motion, supporting papers, and reply on Defendant. Pursuant to CRC Rule 2.251(c)(3)(B), Defendant is self-represented and is “to be served by non-electronic methods unless [he] affirmatively consent[s] to electronic service.” There is no showing that Defendant affirmatively consented to electronic service. Defendant served and filed a timely opposition without objecting to service. The Court considers Plaintiff’s moving papers. However, the Court declines to consider Plaintiff’s improperly filed reply. Plaintiff may respond to Defendant’s opposition during oral argument. <u>General principles applicable to preliminary injunctions</u> Pursuant to Code of Civil Procedure section 526, subdivision (a), an injunction “may be granted in the following cases: (1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually. (2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. (3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual. (4) When pecuniary compensation would not afford adequate relief. (5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief. (6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings. (7) Where the obligation arises from a trust.”

		The burden is on plaintiff to show all elements necessary to support issuance of the injunction. (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.) "A superior court must evaluate two interrelated factors when ruling on a request for a preliminary injunction: (1) the likelihood that the plaintiff will prevail on the merits at trial and (2) the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued." (*Smith v. Adventist Health System/West* (2010) 182 Cal.App.4th 729, 749.) <u>Plaintiff did not show a likelihood of prevailing on the merits</u> In Plaintiff's motion, Plaintiff contends Plaintiff will prevail on Plaintiff's contractual causes of action and misappropriation of trade secrets cause of action. *First cause of action for breach of contract – Purchase Agreement and second cause of action for breach of contract – Producer Agreement* "[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) Plaintiff contends Defendant breached section 6.1 of the Purchase Agreement and section 4 of the Producer Agreement. (Memorandum, 7:25-7.) Plaintiff did not offer any evidence to show Plaintiff's performance or excuse for nonperformance. In addition, Plaintiff's evidence does not show Defendant breached the confidentiality provisions of either the Purchase Agreement or the Producer Agreement. At best, Plaintiff showed one insured transferred its business to Defendant in 2026. (Thies Decl., ¶ 23, Exhibit 1.) The submitted evidence also shows one insured reversed the transition of the policy back to Defendant, but there is no showing that Defendant solicited the reversal. (Torres Decl., Exhibit B.) There is no showing that Defendant solicited any of the insured. There is no showing that Defendant used information obtained during Defendant's employment by Plaintiff for Defendant's business. Plaintiff did not submit sufficient evidence to show Defendant breached the confidentiality provisions of these two agreements.

		To the extent Plaintiff contends Defendant failed to remit payments owed to Plaintiff, there is no evidence showing what money was owed or the amount owed. The Court notes section 6.2 of the Purchase Agreement references a schedule 6.2, but neither party submitted a copy of this schedule. Plaintiff did not show a probability of prevailing on these two causes of action. *Third cause of action for misappropriation of trade secrets* "Under the UTSA, a prima facie claim for misappropriation of trade secrets requires the plaintiff to demonstrate: (1) the plaintiff owned a trade secret, (2) the defendant acquired, disclosed, or used the plaintiff's trade secret through improper means, and (3) the defendant's actions damaged the plaintiff." (*Sargent Fletcher, Inc. v. Able Corp.* (2003) 110 Cal.App.4th 1658, 1665.) Civil Code section 3426.1, subdivision (b) defines the term "misappropriation" as follows: (1) Acquisition of a trade secret of another by a person who knows or has reason to know that the trade secret was acquired by improper means; or (2) Disclosure or use of a trade secret of another without express or implied consent by a person who: (A) Used improper means to acquire knowledge of the trade secret; or (B) At the time of disclosure or use, knew or had reason to know that his or her knowledge of the trade secret was: (i) Derived from or through a person who had utilized improper means to acquire it; (ii) Acquired under circumstances giving rise to a duty to maintain its secrecy or limit its use; or (iii) Derived from or through a person who owed a duty to the person seeking relief to maintain its secrecy or limit its use; or (C) Before a material change of his or her position, knew or had reason to know that it was a trade secret and that knowledge of it had been acquired by accident or mistake. Section 3426.1, subdivision (d) defines a trade secret to mean: "information, including a formula, pattern, compilation, program, device, method, technique, or process, that: (1) Derives independent economic value, actual or potential, from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use; and

		(2) Is the subject of efforts that are reasonable under the circumstances to maintain its secrecy." Plaintiff did not show Defendant improperly acquired, disclosed, or used Plaintiff's trade secrets. Plaintiff did not show what trade secrets Defendant used. The Court presumes the trade secret at issue is the client list Plaintiff purchased from Defendant. Plaintiff did not show a probability of prevailing on this cause of action. <u>Pecuniary compensation inadequate</u> To the extent the motion is based on Defendant not paying some amount owed to Plaintiff, Plaintiff did not show pecuniary compensation would be inadequate. Even if Plaintiff had shown Defendant was improperly using confidential information and/or trade secrets to solicit business or interfere with Plaintiff's business, Plaintiff did not show pecuniary compensation would be inadequate. No evidence submitted to show any harm to Plaintiff's goodwill. In the event Plaintiff prevails and shows misappropriation or refusal to comply with the agreements, Defendant could recover the amounts paid to Plaintiff and other monetary damages. <u>Balancing of harm</u> The Court need not reach the issue of whether the balance of harms favors granting a preliminary injunction when Plaintiff does not show a likelihood of prevailing on the merits. (*Yu v. University of La Verne* (2011) 196 Cal.App.4th 779, 793.) For the reasons set forth above, Plaintiff's motion for a preliminary injunction is denied. Defendant shall give notice.
8.	2023-1353566 Holiday vs. The City of Newport Beach	Defendant City of Newport Beach's motion for summary judgment or adjudication on the second amended complaint ("SAC") of plaintiffs Adam and Julie Holiday, trustees of the Holiday Family Revocable trust is denied. The City's request for judicial notice is granted. In short, the court finds there are triable issues of fact on the grounds for summary judgment/adjudication raised in the City's motion. <u>Facts</u>

		This action arises out of the 3/3/23 landslide on the bluffs near the Back Bay that occurred on the 1900 block of Galaxy Drive in Newport Beach, California. Plaintiffs are the owners of a home damaged by the landslide. They seek to hold the City of Newport Beach liable, alleging its failure to properly maintain nearby storm drains. [Second Amended Complaint ("SAC" – ROA #157), ¶¶ 9, 14.] Plaintiffs have sued the City for: (1) inverse condemnation; (2) nuisance; (3) dangerous condition of public property; and (4) failure to perform mandatory duty. In its turn, the City of Newport Beach (the "City") has cross-claimed against a number of governmental entities, including the State of California by and through the Department of Fish and Wildlife ("CDFW"), and private parties. [Cross-Complaint (ROA #26) and Roe amendments (ROA ## 42-45).] The CDFW has filed its own cross-complaint against The Irvine Land Company, LLC, The Irvine Company, LLC, and Irvine Community Development Company, LLC (collectively, the "Irvine Companies"). [ROA # 131.] The City has moved for summary judgment or adjudication on Plaintiffs' SAC, primarily on the ground that the City's storm drain was not a substantial factor in causing the subject landslide. In support of its motion for summary judgment/adjudication, the City submits four declarations as well as exhibits. [ROA ## 275-282, 285-286.] The Sozio Declaration (ROA #258) is counsel's declaration authenticating certain exhibits. The Vukojevic Declaration (ROA #226) is the declaration of the City's Utility Director, who has worked for the City since 2013. [Vukojevic Decl., ¶¶ 1, 3.] He is a civil engineer who is familiar with the City's drainage facilities and has experience designing storm drains. [*Id.*, ¶¶ 2, 5-6.] Vukkojevic describes the various documents (*e.g.*, drainage improvement plan, contracts, photos, inspection video) he reviewed and site inspections he made. From these, he recounts the history of linings. Repairs, and condition of the relevant storm drains. He concludes that the City did not have notice of malfunction or disrepair in regard to the Storm Drain System from 2012 until the landslide. [*Id.*, ¶ 40.] The City also submits two expert witness declarations. David Colbaugh is an experienced civil/geotechnical engineer and the president of a geotechnical engineering firm. [Colbaugh Decl. (ROA #272), ¶¶ 2-3.] Colbaugh describes site visits and a long list of documents and reports, both historical and related to the slight at

issue, that he reviewed, such as: weather data, soil investigation reports, slope failure investigations, geotechnical investigations, survey maps, grading plans, google earth maps, video inspections of drains. From his interpretation of these, Colbaugh describes the geology of the bluffs, groundwater, the construction and reconstruction of the slope, prior failures of the, the history of ownership and (non)maintenance of the slope – and its instability, the conditions preceding the 2023 slide, and the condition/functionality of the relevant storm drains. He concludes: "Based on my investigation, it is my determination that the Storm Drain was functioning properly before the Landslide, showed no signs of significant disrepair or leaks before the Landslide, and did not contribute to the cause of the Landslide." [Colbaugh Decl., ¶ 81.]

Finally, the City submits the declaration of Stephen Guerre, an engineering geologist with extensive experience in the geologic and soils-related field. [Guerre Decl. (ROA #270), ¶¶ 2-3.] He, too, describes a number of documents he reviewed, including aerial images, and reports of geologic contours, and geotechnical reports and soil investigation reports also reviewed by Colbaugh. Based on this review and the information and conclusions he drew from it, Guerre has created and presents a table, a graph, a contour map regarding historical bluff instability and the condition of the slope. [Guerre, Exs. 24, 51, 39.]

The factual conclusions and expert opinions reached by Vukojevic, Colbaugh, and Guerre are the evidentiary support for the City's motion. [*See* Separate Statement of Undisputed Material Facts ("SUMF" – ROA #268), nos. 3-381.]

In opposition, CDFW submits the declaration of Todd Crampton, an experienced engineering geologist who, based on review of essentially the same documents and data, disputes Vukojevic's, Colbaugh's and Guerre's conclusions. [Crampton Decl. (ROA #424), ¶¶ 1-7. *See also* CDFW AOE ("COE" -ROA ## 426, 430) and Cheung Decl. (ROA #418) (counsel's authentication of certain exhibit).]

Crampton's factual conclusions and expert opinion are the are the evidentiary support for CDFW's opposition. [*See* Crampton Decl. (formatting in response to the City's UMF; CDFW Response to UMF ("RUMF") and Additional Statement of UMF ("AUMF") (ROA #420), nos. 2, 15, etc. to no. 381 and nos. 1-5.]

<u>Legal Standard</u>
Under Code of Civil Procedure section 437, a party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that

the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Code Civ. Proc. §437c(f)(1).

"A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." *Id.* For summary adjudication of a claim of damages, other than punitive damages, that does not entirely dispose of a cause action, defense, or issue of duty the parties must comply with Code of Civil Procedure section 437c(s)(1).

A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . ." *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. "A prima facie showing is one that is sufficient to support the position of the party in question." *Id.* at 851. A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. Code Civ. Proc. § 437c(p)(2).

A cause of action "cannot be established" if the undisputed facts presented by the defendant prove the contrary of the plaintiff's allegations as a matter of law. *Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597. Alternatively, a moving defendant can show that a cause of action "cannot be established" by submitting evidence – such as discovery admissions and responses – that the plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. *Aguilar v. Atlantic Richfield Co.*, 25 Cal.4th at 854-855. *See also Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 (finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery); *Scheiding v. Dinwiddie Const. Co.*(1999) 69 Cal.App.4th 64, 80-81 (finding *Union Bank* rule only applies where discovery requests are broad enough to elicit all such information); *Weber v. John Crane, Inc*. (2006) 143 Cal.App.4th 1433, 1441-1442 (same).

Once the defendant's burden is met, the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action. *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575. To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. *Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163. Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. *Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.

The moving party's affidavits are strictly construed while those of the opposing party are liberally construed. *Villacres v. ABM Industries, Inc.*, 189 Cal.App.4th at 575. The facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true. *Id*.

Discussion

Opposition by Cross-Defendant rather than Plaintiffs

When a defendant moves for summary judgment, but the plaintiff does not oppose the motion, another party may oppose the motion if that party and the defendant are adverse to one another... *RND Contractors, Inc. v. Superior Court* (2025) 112 Cal.App.5th 697, 699, 703–704.

Allowing parties with an adverse interest to oppose summary judgment furthers the purpose of determining what issues must be resolved at trial. It also serves "the strong public policy favoring disposition on the merits [which] outweighs the competing policy favoring judicial efficiency." (*Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 398, [policy favored continuing summary judgment hearing].) In this personal injury action, "'liability can be apportioned in the main action[,]'" *Bean v. City of Thousand Oaks* (2025) 114 Cal.App.5th 775, 782.

CDFW is not a defendant to Plaintiffs' SAC. It is a cross-defendant to the City's cross-complaint for indemnity and contribution, however. [Cross-Complaint (ROA ## 26, 41.).] By that cross-complaint, the City is "'trying to escape liability [on Plaintiffs' SAC] by blaming someone else for Plaintiff['s] damages.' (*RND*, *supra*, 112 Cal.App.5th at p. 705.)." *Bean v. City of Thousand Oaks*, 114 Cal.App.5th at 782.

That makes the City and CDFW adverse parties as to the complaint. CDFW has standing, therefore, to oppose the City's motion for summary judgment on the SAC.

Merits

First Cause of Action for Inverse Condemnation

There is inverse condemnation liability for any physical injury to real property proximately caused by a public improvement as deliberately designed and constructed, whether or not the injury

		was foreseeable and in the absence of fault by the public entity. *Holtz v. Superior Court* (1970) 3 Cal.3d 296, 303–304. As stated in *Pacific Bell v. City of San Diego* (2000) 81 Cal.App.4th 596, 602 “[a] successful inverse condemnation claimant must prove that a public entity has taken or damaged its property for public use.” To establish liability for inverse condemnation, the plaintiff must prove that: (1) there was a taking or damaging by a public entity of a valuable property right; (2) that the taking or damaging was for a public use; and (3) that the invasion or appropriation directly and specifically affected the property owner to his or her injury. *City of Los Angeles* (2011) 194 Cal. App. 4th 210, 211. <u>Was the Storm Drain a Substantial Cause of the Landslide?</u> The City contends that Plaintiffs cannot prevail on their inverse condemnation claim because they cannot show that the City damaged their property. That is, they cannot show that the storm drain, as opposed to natural features of the slope plus artificial fill, was a substantial cause of the landslide. Certainly, that is the conclusion of the City’s expert witnesses after review of a plethora of data. [Colbaugh Decl., ¶81. *See also* Guerre Decl., ¶¶ 38-41; Vukojevic Decl., ¶ 36.] But CDFW’s expert disagrees with the predicate factual conclusions reached by the City’s experts as support for their opinions. [Crampton Decl., ¶¶ 11-37b.] In short, there is a conflict in the evidence and thus a triable issue of fact about causation. *The Galaxy Bluff is Not a Public Improvement Owned by the City* The City also argues that it is not liable for Plaintiffs’ damages because it does not own or have a right to control the Galaxy Bluff, including the Slope, and plays no role in its improvement, maintenance or repair. *See Ullery v. County of Contra Costa* (1988) 202 Cal.App.3d 562, 570 (finding no inverse condemnation where county did not own stream: “By expressly rejecting the offer of dedication, the public entities demonstrated they were foregoing any public use of the property. Although the creek was a part of the drainage system which drained a 40–acre watershed, the absence of dominion and control exhibited by the public entities, supports the trial court’s finding of no public use. The evidence in this case establishes neither express nor implied acceptance of the dedication offer.”). *But see also id.* at 568 (“A storm drainage system constructed and maintained by a public entity is a public improvement.”).

While acknowledging ownership of the storm drain, the City contends that the storm drain is not where the landslide originated and is not adjacent to Plaintiffs' property. [AOE, Exs. 27 and 49; Vukojevic Decl. ¶ 12, Colbaugh Decl. ¶¶ 61, 79.] Based on the records, CDFW presents a contrary conclusion as to where the landslide originated. [Crampton Decl., ¶ 26; AOE Exs. 56, 57. *See also* UMF and RUMF no. 71.]

In short, there is a triable issue of fact as to an essential predicate to the City's contention that it is not liable because it did not own the slope itself.

Accordingly, summary adjudication of the first cause of action for inverse condemnation – and thus summary judgment on the entire SAC – is denied.

Second Cause of Action for Nuisance

The elements of an action for private nuisance are: (1) interference with use and enjoyment of property; (2) that is substantial, i.e., that causes the plaintiff to suffer "substantial actual damage"; and (3) that is unreasonable. *San Diego Gas & Electric Co. v. Super. Ct.* (1996) 13 Cal.4th 893, 938. "[A] plaintiff bringing a cause of action for private nuisance must show harm to a property interest." *Orange County Water Dist. v. Sabic Innovative Plastics US, LLC* (2017) 14 Cal.App.5th 343, 402.

"Civ. Code § 3479 defines a nuisance as: 'Anything which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property....' 'A nuisance may be a public nuisance, a private nuisance, or both. [Citation.]' *Newhall Land & Farming Co. v. Superior Court* (1993) 19 Cal.App.4th 334, 341." *City of Claremont v. Kruse* (2009) 177 Cal. App. 4th 1153, 1163.

Was the Storm Drain a Substantial Cause of the Landslide?

For this cause of action, the City again, and only, relies on its contentions regarding causation of the landslide. But as discussed above, there is a conflict in the evidence and thus a triable issue of fact about causation.

Accordingly, summary adjudication of the second cause of action for nuisance is denied.

		Third Cause of Action for Dangerous Condition of Public Property Government Code § 835 provides, > Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: > (a) [a] negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or > (b) [t]he public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition. Government Code § 830 defines "dangerous condition" as being "a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used." Govt. Code § 830(a). Except where the doctrine of res ipsa loquitur is applicable, the occurrence of an accident is not in and of itself evidence that public property was in a dangerous condition. Govt. Code § 830.5(a). <u>Was the Storm Drain a Substantial Cause of the Landslide?</u> For this cause of action, the City again relies on its contentions regarding causation of the landslide. But as discussed above, there is a conflict in the evidence and thus a triable issue of fact about causation. <u>The Galaxy Bluff is Not a Public Improvement Owned by the City</u> For this cause of action, the City again also argues that it is not liable for Plaintiffs' damages because it does not own or have a right to control the Galaxy Bluff, including the Slope, and plays no role in its improvement, maintenance or repair. For the reasons discussed above, there is triable issue of fact as to where the landslide starting and thus the role the storm drain that the City concededly owns.

		<u>Did The City Have Notice of a Dangerous Condition?</u> The City contends that it did not have notice of any dangerous condition of any property owned by it as there is no allegation it created a dangerous condition and no evidence it had or was given notice of one. [SAC; Vukojevic Decl. ¶¶ 16, 19, 21, 25-31, 34-36; Colbaugh Decl., ¶¶ 18, 63- 64, 66-68, 70, 73, 75-81; Guerre Decl., ¶ 40; AOE Exs. 20, 25, 28-35, 37.] CDFW disputes this, pointing to, among other things, early evidence of the slope sliding and evidence that the CMP had a 3 inch gap that was known but not necessarily repaired and water was seen flowing from near the storm drain. Colbaugh Decl. ¶¶ 9-10, 21, 22, 24-26, 37a, 37b; COE Exs. 2 (at ex. 5) 7, 20, 29, 30-31, 38; *see also* UMF and RUFM at nos. 234-47, 261, 165, 157-76, 281.] Given this evidence, there is a triable issue of fact whether the City had notice of a dangerous condition. *Is the City Is Immune from Liability under Govt. Code §831.25?* (a) Neither a public entity nor a public employee is liable for any damage or injury to property, or for emotional distress unless the plaintiff has suffered substantial physical injury, off the public entity's property caused by land failure of any unimproved public property if the land failure was caused by a natural condition of the unimproved public property. (b) For the purposes of this section, a natural condition exists and property shall be deemed unimproved notwithstanding the intervention of minor improvements made for the preservation or prudent management of the property in its unimproved state that did not contribute to the land failure. Gov. Code, § 831.25. The City pled immunity as an affirmative defense in its answer. [Answer to FAC (ROA #25), twenty third affirmative defense; Stipulation (Answer to FAC deemed answer to SAC – ROA #146), ¶ 9.] For this immunity defense the City contends that the Galaxy Bluff itself is naturally prone to instability and the City does not own or control it. But CDFW contends that the statutory immunity is not available here as it is limited to unimproved property, which a man-made storm drain is not.

For all the reasons and evidence previously discussed, this is a triable issue of fact.

But could there be immunity even if the storm drain contributed to the failure of the slope? On the current record, the court finds there is at least a triable issue. *See County of San Mateo v. Superior Court* (2017) 13 Cal.App.5th 724, 738–739 740 (affirming denial of summary judgment on immunity defense due to triable issue of fact whether artificial changes contributed to dangerous condition of unimproved property).

For all the reasons discussed, summary adjudication of the third cause of action for dangerous condition of public property is denied.

Fourth Cause of Action for Failure to Perform Mandatory Duty Govt. Code §815.6

> Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.

Govt. Code, § 815.6.

In their SAC, Plaintiffs allege the City had an applicable mandatory duty under Newport Beach Municipal Code 2.12.080(D) and Government Code section 818.6.

Newport Beach Municipal Code 2.12.080:

> The Utilities Department shall be under the supervision of the Utilities Director. The functions of the Utilities Department shall include:
> A. Maintenance and operation of the City water system;
> B. Maintenance and operation of the City sewer system;
> C. Maintenance and operation of the City's street sweeping program;
> D. Maintenance and operation of the City's storm drain system;
> E. Maintenance and operation of the City street lighting system;

		F. Management of the City's oil and gas operations; G. Management of the regulations found in Title 14; and H. Such other functions as may be delegated by the City Manager or the City Council. (Ord. 2023-22 § 53, 2023; Ord. 2018-8 § 3, 2018: Ord. 2018-6 §§ 1, 3, 2018; Ord. 2011-17 § 1 (part), 2011) A public entity is not liable for injury caused by its failure to make an inspection, or by reason of making an inadequate or negligent inspection, of any property, other than its property (as defined in subdivision (c) of Section 830), for the purpose of determining whether the property complies with or violates any enactment or contains or constitutes a hazard to health or safety. Govt. Code, § 818.6. Courts use a three-prong test to determine whether an entity is liable under Section 815.6: "(1) an enactment must impose a mandatory, not discretionary duty; (2) the enactment must intend to protect against the kind of risk of injury suffered by the party asserting section 815.6 as a basis for liability; and (3) breach of the mandatory duty must be the proximate cause of the injury suffered." *State of California v. Superior Court* (1984) 150 Cal.App.3d 848, 854. The City disputes that Newport Beach Municipal Code 2.12.080(D) imposes a mandatory duty on the City. But that section expressly provides that the Municipal Operations Division "shall" be responsible for the "[m]aintenance and operation of the City's storm drain system." NBMC § 2.12.080(D). Further, the Newport Beach Municipal Code section described the City's Public Works Department responsibilities as: A. Planning, installation, design, preparation, review and approval of plans, specifications and working details, operations and **maintenance**, and administration of contracts for the construction of public works, including streets**, storm drains**, water quality sewers, water, harbors, street lighting, traffic signals and other public facilities; . . . K. **Maintenance and repair** of streets, alleys, curbs, sidewalks, **storm drains**, bridges, piers, bulkheads and floats;

		NBMC § 2.12.100(A) and (K) (bold added). On its face, this would appear to impose a duty on the City to maintain the storm drain in good repair to prevent leaking and discharge – which could cause the very harm at issue here. On the current record, summary adjudication on the fourth cause of action for failure to perform mandatory duty is denied.
13.	2025-1501947 Deckers Fine Gifts & Collectibles, Inc. vs. Pearson	The Demurrer brought by Cross-Defendants Deckers Fine Gifts & Collectibles, Inc., Daniel T. Feliciano and Kris Feliciano is sustained, with 15 days leave to amend. The Request for Judicial Notice (ROA No. 114) filed by Cross-Defendants is granted, pursuant to Evidence Code section 452, subdivisions (c) and (h). While Cross-Complainants assert the Demurrer was untimely, the Court exercises its discretion to consider it. (See *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 749.) "The essential elements of an ejectment action are (1) the plaintiff's valid interest in the property and (2) the defendant's wrongful possession and withholding thereof." (*2710 Sutter Ventures, LLC v. Millis* (2022) 82 Cal.App.5th 842, 866.) In demurring to the claim for ejectment, Cross-Defendants assert Complainants *cannot* allege wrongful possession, relying on the following principle: "A cotenant has no right to oust a person who holds possession with the consent of another tenant in common." (*Verdier v. Verdier* (1957) 152 Cal.App.2d 348, 352.) "When a joint tenant leases to a third party he confers upon the latter the same right of possession that he himself has." (*Ibid.*) "[A] single cotenant may confer occupancy rights upon a third person." (*Atlantic Oil Co. v. Los Angeles County* (1968) 69 Cal.2d 585, 602.) Cross-Defendants assert the Cross-Complaint concedes they obtained their Lease of the property from a cotenant and, thus, the element of wrongful possession is lacking. Per the Complaint, Robert E. Pearson, "is the successor trustee of the Maurice A. Enderle Trust dated February 4, 1988 ('Pearson') which is the 48% owner of the Property as well as the sole Principal of EMS Development Company ('EMS'), the original Master Lessee/Sublessor of the 1976 Ground Lease…." (¶5 of Cross-Complaint.)

		Thereafter, the Complaint alleges: "On or about November 3, 2018, Pearson entered into a Lease Agreement with Deckers, Daniel T. Feliciano, Kris Feliciano, which had an expiration date of December 31, 2027, beyond the expiration date of the Master Ground Lease." (¶21 of Cross-Complaint and Exhibit 4 thereto.) Given the Complaint indicates that "Pearson" refers to Robert E. Pearson in his capacity as successor trustee of the Maurice A. Enderle Trust, which is the 48% owner of the Property, and given the later allegation that "Pearson" entered into a Lease Agreement with Cross-Defendants, the Complaint *suggests* the Lease was entered into by Pearson, in his capacity as a partial owner of the property. However, a review of the attached Lease Agreement indicates it was entered into between Cross-Defendants and "EMS Development Company d.b.a. Enderle Center" and executed by Sharyn A. Cable, on behalf thereof. (¶21 of Cross-Complaint and Exhibit 4 thereto.) Per the Complaint, EMS Development Company is the original Master Lessee/Sublessor of the 1967 Ground Lease. (¶5 and ¶13 of Cross-Complaint.) The Cross-Complaint additionally alleges the Maurice A. Enderle Trust is the sole Principal of EMS Development Company. (¶5, ¶12 and ¶18 of Cross-Complaint.) In addition to the above, the Cross-Complaint alleges that "EMS acted solely as master lessee and subleasor, and its authority to lease space within the shopping center was expressly limited by the terms and duration of the Ground Lease." (¶15 of Cross-Complaint.) The Cross-Complaint also alleges: "Pearson was the master tenant and sublessor under the Master Ground Lease, and Pearson could not lawfully grant lease rights extending past the expiration of the Master Ground Lease." (¶20 of Cross-Complaint.) Based on the above, it is unclear whether the Cross-Complaint is alleging the Lease Agreement was entered into by Pearson, in his capacity as Trustee and partial owner or by EMS, as the master lessee. Cross-Defendants additionally offer Fictitious Business Statements, which indicate that EMS Development Company was registered, first, as a fictious business name of Maurice A. Enderle (Exhibit 1 of RJN), and then subsequently in 2020, as a fictitious business name of Robert E. Pearson, Trustee, Maurice A. Enderle Declaration of Trust. (Exhibit 2 of RJN). The Demurrer does not further extrapolate from the above or offer any authority, which addresses the significance of the fictitious business name.

It is only within the Reply, wherein Cross-Defendants first cite authority which notes that a sole proprietorship and "dba" are legally indistinguishable from the individual owner thereof. (See Reply: 2:18-19, citing *Ball v. Steadfast-BLK* (2011) 196 Cal.App.4th 694, 701.)

As noted by Cross-Defendants, "[d]oing business under a fictitious business name does not create a separate legal entity." (*Meller & Snyder v. R&T Properties, Inc.* (1998) 62 Cal.App.4th 1303, 1311.) "Doing business under another name does not create an entity distinct from the person operating the business." (*Providence Washington Ins. Co. v. Valley Forge Ins. Co.* (1996) 42 Cal.App.4th 1194, 1200.)

This authority, which was not included within the Demurrer, suggests there is no legal distinction between EMS Development Company and Robert Pearson, as Trustee of The Maurice Enderle Declaration of Trust (48% owner of the Property).

In addition to the above, Cross-Defendants note, within their Reply, that EMS is alleged to have been converted to a sole proprietorship in 1998 (¶12 of Cross-Complaint), and "[i]f a partnership consists of only two persons, the partnership dissolves by operation of law when one of them departs." (*Corrales v. Corrales* (2011) 198 Cal.App.4th 221, 223.)

Cross-Defendants assert, within the Reply: "Since EMS, the partnership, ceased to exist in 1998 as alleged in the Cross-complaint, it did not, and could not, enter into Plaintiffs' lease in November of 2018." (Reply: 2:23-24.) The Reply continues, arguing that "one cannot enter into an agreement on behalf of a terminated entity." (Reply: 3:18-20.)

The above reasoning was offered for the first time within Cross-Defendants' Reply, which has deprived Cross-Complainants an opportunity to respond.

"It is elementary that points raised for the first time in a reply brief are not considered by the court." (*Magic Kitchen LLC v. Good Things Intern. Ltd.* (2007) 153 Cal.App.4th 1144, 1161.)

Nonetheless, for the reasons stated above, the allegations in the Cross Complaint are ambiguous. As Complainants do not make clear who entered into the Lease Agreement or the interest intended to be transferred, the Demurrer is sustained, with leave to amend.

Cross-Complainants should clarify: (1) Who entered into the Lease Agreement; (2) Whether EMS, as a sole proprietorship maintained

		rights under the Ground Lease; and (3) What interest was transferred in the Lease. (¶21 of Cross-Complaint and Exhibit 4 thereto.) At the very least, as there is no legal distinction between EMS and the Trust which registered it as a fictitious business name, the Lease had the potential to transfer interests arising from partial ownership of the property. While the Opposition asserts "[t]he specific, well-pleaded facts here are that the Deckers Lease was granted by EMS as master tenant under the Ground Lease" (Opposition: 8:21-22), the above is not at all clear. Lastly, as the parties are in apparent agreement that the Second Cause of Action rises or falls with the First Cause of Action (See Opposition: 8:7-8), the demurrer to the Second Cause of Action is similarly sustained, with leave to amend, to allow greater clarification as to the actual controversy. Cross-Defendants to give notice.
14.	2025-1522979 Marquez vs. Mercedes-Benz USA LLC	The motion by Defendant House of Imports ("Repair Facility") for judgment on the pleadings on the third cause of action for negligent repair alleged in the Complaint filed by Plaintiffs Humberto Marquez and Pauline A. Marquez (collectively, "Plaintiffs") is granted. The elements for negligent repair are the same as the elements for negligence. (*See, Sabicer v. Ford Motor Company* (C.D. Cal. 2019) 362 F.Supp.3d 837, 840.) "The elements of negligence are duty, breach, causation, and damages. *Burgess v. Superior Court*, (1992) 2 Cal. 4th 1064, 1072. 'One who undertakes repairs has a duty arising in tort to do them without negligence.' *Sw. Forest Indus., Inc. v. Westinghouse Elec. Corp.*, 422 F.2d 1013, 1020 (9th Cir. 1970)." (*Id.*, at 840-841.) "Any individual, partnership, corporation, association, or other legal relationship which engages in the business of providing service or repair to new or used consumer goods has a duty to the purchaser to perform those services in a good and workmanlike manner." (Civ. Code, § 1796.5.) Plaintiffs did not allege sufficient facts to state this cause of action. Plaintiffs only allege in a conclusory manner that Repair Facility's "negligent breach of its duties owed to Plaintiffs were a proximate cause of Plaintiffs' damages." (Complaint, ¶ 54.) Accordingly, Repair Facility's motion is granted with 30 days leave to amend. In light of the ruling above, the Court need not determine whether the third cause of action is barred by the economic loss rule as pled.

		Repair Facility shall give notice.
16.	2024-1408350 Guo vs. Je Beaute, Inc.	Continued from 06/10/2026.